

13. 9:00 AM CASE NUMBER: MSC14-02341
CASE NAME: NAVY FEDERAL CREDIT UNION VS. BRAINERD
***HEARING ON MOTION IN RE: EARNINGS WITHHOLDING ORDER ON SPOUSE'S COMMUNITY**
PROPERTY WAGES
FILED BY: NAVY FEDERAL CREDIT UNION
TENTATIVE RULING:

Plaintiff and Judgment Creditor Navy Federal Credit Union ("Judgment Creditor") filed a Motion for Earnings Withholding Order on Spouse's Community Property Wages on September 12, 2025 (the "Motion for Spouse Wage Garnishment"). The Motion for Spouse Wage Garnishment was set for hearing on February 2, 2026. The motion was duly served and is unopposed.

Background

A money judgment was entered herein on August 4, 2015 against defendant and judgment debtor Lucinda M. Brainerd ("Judgment Debtor") in the total amount of \$52,305.09 (the "Judgment"). The Judgment was renewed in 2025.

Judgment Creditor has now filed its Motion for Spouse Wage Garnishment on the grounds that the Judgment remains unsatisfied and that the underlying obligation arise at a time when the Judgment Debtor was married to Timothy Brainerd.

A similar motion was filed in 2016 and granted. See Order dated September 22, 2016 (granting unopposed motion to authorize wage garnishment as to Timothy Brainerd).

Analysis

Family Code section 910(a) provides:

Except as otherwise expressly provided by statute, the community estate is liable for a debt incurred by either spouse before or during marriage, regardless of which spouse has the management and control of the property and regardless of whether one or both spouses are parties to the debt or to a judgment for the debt.

See Fam. Code § 910(a).

To seek an earnings withholding order against a judgment debtor's spouse, a judgment creditor must obtain a court order upon a noticed motion. Code Civ. Proc. § 706.109 ("An earnings withholding order may not be issued against the earnings of the spouse of the judgment debtor except by court order upon noticed motion.").

The Judgment Creditor's supporting declaration demonstrates that Lucinda M. Brainerd and Timothy Brainerd are wife and husband. See Declaration of Bryan M. Grundon filed September 12, 2025. This is corroborated by the Judgment Debtor's own statements in the attached debtor examination questionnaire. *Id.* at **Exhibit A**.

There is no opposition and no showing by the Judgment Debtor or the Judgment Debtor's spouse that underlying obligation and/or the Judgment for the debt is not an obligation of the community estate for which the community wages of the Judgment Debtor's spouse may be garnished in satisfaction.

Disposition

The Court finds and rules as follows:

1. The Motion for Spouse Wage Garnishment is GRANTED.
2. Upon issuance of writ of execution herein by the Court and the Judgment Creditor's filing of an Application for Earnings Withholding Order and related papers, the levying officer is directed to issue the subject wage garnishment as to Timothy Brainerd.
3. The Court shall issue the order after hearing.

14. 9:00 AM CASE NUMBER: MSC20-00156
CASE NAME: ADELPHOS VS BAY AREA ELEVATOR
***HEARING ON MOTION IN RE: RELEASE OF INTERPLEAD FUNDS**
FILED BY: ADELPHOS, LLC, A LIMITED LIABILITY COMPANY
TENTATIVE RULING:

Plaintiff Adelphos, LLC ("Plaintiff") filed a Motion for Release of Interpleaded Funds on September 17, 2025 (the "Motion for Release of Interpleaded Funds"). The matter was set for hearing on February 2, 2026.

Background

Plaintiff filed its Complaint on January 27, 2020 alleging various causes of action against the name defendants. A Notice of Settlement of Entire Case was filed February 21, 2025.

Plaintiff's motion is made on the grounds that Plaintiff has settled and dismissed all claims against all defendants that have appeared in this matter, no adverse claimants remain, and Plaintiff is the sole party entitled to the funds. See Declaration of Brian M. Junginger filed September 17, 2025, ¶¶2-5.

Analysis

The Motion for Release of Interpleaded Funds is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion for Release of Interpleaded Funds is GRANTED.
2. Plaintiff to submit a proposed form of order after hearing.

15. 9:00 AM CASE NUMBER: MSC21-02364
CASE NAME: HOOKER VS. MICHAEL C. STEAD INC.
***HEARING ON MOTION IN RE: STRIKE, OR IN THE ALTERNATIVE, TAX COSTS.**
FILED BY:
TENTATIVE RULING:

Defendant Kia America, Inc. ("Kia") filed a Motion to Strike, or in the Alternative, Tax Costs on July 22, 2025 (the "Motion to Tax Costs"). The Motion to Tax Costs was initially set for hearing on October 20, 2025. Plaintiff Eric Hooker ("Plaintiff") separately filed a Motion for Attorney's Fees, Costs and Expenses